

Nepal Police and Provincial Police (Operation, Supervision and Coordination) Act, 2019

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 11

Nepal Police and Provincial Police (Operation, Supervision and Coordination) Act, 2076

Certification and Publication Date

2076.09.28

Amending Acts

1. Nepal Police and Provincial Police (Operation, Supervision and Coordination) (First Amendment) Act, 2079
2079.03.31

Act Number 17 of the Year 2076

An Act Made to Provide for the Operation, Supervision and Coordination of Functions Performed by Nepal Police and Provincial Police

Preamble: Whereas, it is desirable to make necessary provisions relating to the operation, supervision and coordination of functions performed by Nepal Police and Provincial Police,

The Federal Parliament has enacted this Act. Chapter 1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Nepal Police and Provincial Police (Operation, Supervision and Coordination) Act, 2076".

(2) This Act shall commence on the eighth day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Prescribed" or "as prescribed" shall be understood as prescribed or as prescribed in the rules made under this Act.

(b) "Nepal Police" shall be understood as the organization of police employees serving in the Nepal Police service established pursuant to the federal law, and the said term also denotes police employees serving in Nepal Police.

(c) "Provincial Police" shall be understood as the organization of police employees serving in the Provincial Police service established pursuant to this Act and the provincial law, and the said term also denotes police employees appointed, adjusted or deployed and serving in the Provincial Police.

(d) "Provincial Ministry" shall be understood as the ministry dealing with internal affairs of the province.

(e) "Police employee" shall be understood as a police employee serving in Nepal Police and Provincial Police.

(f) "Ministry" shall be understood as the Ministry of Home Affairs of the Government of Nepal. Chapter 2

Functions, Duties and Powers of Nepal Police

3.

Functions, Duties and Powers of Nepal Police: The functions, duties and powers of Nepal Police shall be as follows:- (a) To maintain peace and security in the country and to prevent and control crime, (b) To provide security to important persons, places, bodies, projects of national importance, international airports, national highways, roads and foreign diplomatic missions as specified by the Government of Nepal, (c) To collect necessary intelligence relating to public security arrangements, crime, communal or social hatred or any form of extremism, to make such intelligence available to the Government of Nepal, and to be mobilized immediately as necessary for its control, (d) To maintain coordination among the relevant bodies for crime prevention, control and investigation and to garner necessary assistance in that regard, (e) To exchange coordination and mutual assistance at international and regional levels concerning crime prevention, investigation and control with the approval of the Government of Nepal, (f) To be mobilized in any disaster-affected area for disaster management related work including rescue, relief and rehabilitation during times of disaster and to make necessary coordination, (g) To collect, analyze and assess information on the security situation across the country and adopt necessary security measures, (h) To arrange for the provision of weapons, ammunition and means of communication for the professional performance and organizational needs of Nepal Police and Provincial Police, (i) To contribute to the promotion of good governance by protecting fundamental human rights, maintaining peace, order and tranquility, (j) To participate in United Nations Missions and other international missions related to peacekeeping, subject to the policy directives of the Ministry, and to also make Provincial Police participate in such work, (k) To maintain national records regarding crime, (l) To assist in enhancing the efficiency of Provincial Police by making arrangements for training, and providing assistance in matters including equipment, technology, forensic science, as well as to assist in capacity building of Provincial Police, (m) To provide necessary assistance on matters where assistance is requested from Provincial Police, (n) To take stock of peace and security, to exchange information regarding threats, challenges and risks related to peace and security with Provincial Police, to provide necessary advice and suggestions to Provincial Police, and to depute police employees as necessary after informing Provincial Police, (o) To perform functions relating to traffic management, (p) To be mobilized in other special types of police operations as specified by federal law, (q) To perform functions specified by the Government of Nepal from time to time, (r) To perform other functions as specified by the prevailing federal law. 4.

Investigation by Nepal Police: (1) Nepal Police shall investigate the following types of offenses:- (a) Offenses against the state, (b) Offenses relating to citizenship and passport, Amended by the first amendment.(c) Offenses relating to immigration, (d) Offenses relating to organized crime, (e) Offenses relating to terrorism, (f) Offenses relating to human trafficking and transportation, (g) Offenses relating to cyber crime, (h) Offenses that must be investigated by Nepal Police pursuant to federal law, (i) Offenses committed involving the jurisdiction of more than one province for the purpose of investigation, (j) Cross-border offenses and any offense committed outside Nepal or requiring investigation outside Nepal as well, (k) Offenses which the Ministry orders to be investigated by Nepal Police due to being sensitive from the perspective of the seriousness of the offense, public interest or public peace and order, (l) Offenses which any court orders to be investigated by Nepal Police, (m) Offenses specified by the Government of Nepal by publishing a notice in the Nepal Gazette. (2) If, in relation to any offense that must be investigated by Provincial Police, the Provincial Police makes a request stating that investigation by Nepal Police would be more effective, Nepal Police shall investigate such offense. (3) While investigating offenses pursuant to sub-section (1) or (2),

Nepal Police may seek the assistance of Provincial Police as necessary, and it shall be the duty of Provincial Police to provide assistance as so requested. Chapter 3 Provisions Relating to Provincial Police

5. Formation of Provincial Police: (1) In each province, there shall be a Provincial Police organization under the Provincial Ministry. (2) The formation and operation of Provincial Police shall be as per the provincial law. (3) Notwithstanding anything contained in sub-section (2), for the first time, Provincial Police shall be formed by adjusting or deploying police employees serving in Nepal Police pursuant to the federal law relating to adjustment of police employees. (4) Until the provincial law is made pursuant to sub-section (2), the operation of Provincial Police shall be subject to this Act and as specified by the Government of Nepal. (5) The Provincial Police organization shall be inclusive in nature. 6.

Posts, Recruitment, Uniform and Training of Provincial Police: (1) The designations and hierarchy of posts in Provincial Police shall be as specified by the Government of Nepal. (2) The qualifications required for appointment to posts in Provincial Police, recruitment procedures, examination syllabus and examination system shall be the same as those determined for police employees of equivalent posts in Nepal Police. (3) The uniform and insignia of Provincial Police shall be as determined by the Government of Nepal, ensuring uniformity in the Provincial Police of all provinces. (4) The uniform worn by Provincial Police may bear any insignia or logo reflecting the nationality of Nepal and the identity of the province, as determined by the provincial government. (5) Provincial Police shall be given basic training and in-service training as required. (6) Nepal Police may make arrangements to provide special training to Provincial Police. 7. Provincial Police Chief: (1) The Government of Nepal shall depute a Deputy Inspector General of Police of Nepal Police as the Chief of Provincial Police. (2) A police employee deputed as the Chief of Provincial Police shall wear the uniform and insignia of Provincial Police and function as Provincial Police. (3) Provincial Police shall perform functions under the control of the respective Provincial Police Chief. (4) The Provincial Police Chief shall receive remuneration equivalent to that determined for a police employee of an equivalent post in Nepal Police, and facilities as determined by the provincial government, not less than the facilities received by a police employee of an equivalent post in Nepal Police. (5) A police employee deputed as Provincial Police Chief may be transferred by the Government of Nepal, in coordination with the respective provincial government, to another province or to any body under Nepal Police. 8.

Functions, Duties and Powers of Provincial Police: (1) Subject to this Act, the functions, duties and powers of Provincial Police shall be as follows:- (a) To maintain peace, security and public order within the province, (b) To protect the life and property of citizens within the province and to contribute to the protection of civil liberties and promotion of good governance, (c) To collect, analyze and assess necessary intelligence relating to public security arrangements and crime prevention and to arrange necessary security measures, (d) To provide security to important persons, places, bodies or projects within the province as specified by the Government of Nepal or the provincial government, (e) To protect transport, buildings, structures and other public and government property within the province, (f) To adopt necessary measures pursuant to law for crime prevention and control within the province and to garner assistance and coordination from relevant bodies for such work, (g) To be mobilized for disaster management related work including rescue, relief and rehabilitation during times of disaster within the province and to make necessary coordination, (h) To maintain provincial records regarding crimes committed within the province, (i) To arrange for the security of provincial prisons, detention rooms and prisoners and detainees in prisons and detention rooms pursuant to the prevailing law Deleted by the first amendment., (j) To make traffic police timely and competent to make vehicular movement safe within the province and to manage traffic within the province, (k) To arrange for regular monitoring of whether private sector security providers and security personnel within the province comply with the standards to be adopted, (l) To perform functions relating to training and capacity building of

Provincial Police, (m) To perform functions relating to community policing, (n) To take custody of unclaimed property and manage it pursuant to the prevailing law, (o) To provide requested assistance in relation to offenses investigated by other bodies pursuant to the prevailing law, (p) If transfer of accused, detainees and prisoners from one province to another is required, to coordinate and manage security for such transfer pursuant to federal law, (q) To maintain contact, exchange information and coordinate with Nepal Police and police organizations of other provinces, (r) To perform other functions as specified by the prevailing law. (2) The powers conferred on Nepal Police regarding public movement pursuant to the prevailing law may also be exercised by Provincial Police pursuant to law. (3) While using equipment related to information and communication technology, Provincial Police must use them in coordination with Nepal Police. 9.

Investigation by Provincial Police: (1) Provincial Police shall investigate, pursuant to the prevailing law, offenses occurring within its province that are to be prosecuted by the Government of Nepal, except offenses investigated by Nepal Police pursuant to Section 4 and offenses investigated by other bodies or officers pursuant to the prevailing law. (2) While investigating pursuant to this section, Provincial Police shall exercise the powers conferred on police employees for crime investigation pursuant to the prevailing law. (3) The investigation report relating to an offense investigated by Provincial Police pursuant to this section shall be submitted to the concerned government attorney. 10. To Provide Information: (1) Provincial Police must provide information to the Provincial Ministry, Nepal Police and the Chief District Officer of the concerned district regarding intelligence collected relating to public security arrangements and crime prevention and the security measures arranged based thereon. (2) Provincial Police must prepare a monthly report on cases investigated by it and make it available to the Provincial Ministry, Nepal Police and the Chief District Officer of the concerned district. 10A. Functions to be Performed by Nepal Police: Added by the first amendment.(1)

Notwithstanding anything contained in Sections 8 and 9, Nepal Police shall perform the functions, duties and powers of Provincial Police and also investigate offenses to be investigated by Provincial Police in Kathmandu, Lalitpur and Bhaktapur districts. (2) For the purpose of sub-section (1) and for functions performed by Nepal Police, there shall be police offices under Nepal Police in Kathmandu, Lalitpur and Bhaktapur districts. (3) While performing functions pursuant to this section, Nepal Police shall coordinate with Provincial Police. Chapter 4 Mobilization and Supervision 11. Mobilization and Supervision of Nepal Police: (1) The mobilization and supervision of Nepal Police shall be done by the Government of Nepal. (2) Subject to this Act, the prevailing law and the policy directives of the Government of Nepal, a higher police office may issue orders or directives to its subordinate offices regarding peace and order, crime prevention, control and investigation. It shall be the duty of every police office and police employee to comply with such orders or directives. (3) Police employees of Nepal Police working at the district level shall be under the control and direction of the Chief District Officer of the concerned district. 12.

Mobilization and Supervision of Provincial Police: (1) The mobilization and supervision of Provincial Police shall be done by the provincial government. (2) Provincial Police shall be accountable to the provincial government regarding internal peace and security of the province. (3) Provincial Police must work under the policies of the Government of Nepal and the provincial government and under the control of the Provincial Ministry and the Provincial Police Chief regarding maintaining peace and security in the province. (4) Subject to this Act, the prevailing law and the policy directives of the Government of Nepal, Nepal Police may issue orders or directives to the Provincial Police Chief, and the Chief District Officer may issue orders or directives to the Provincial Police of the concerned district regarding peace and order, crime prevention and control. (5) For maintaining peace and security within the district, the Chief District Officer may mobilize the Provincial Police of the concerned district pursuant to the prevailing law, and when so mobilized, the Provincial Police of the concerned district must work under the direction of the Chief District Officer. (6) While mobilizing

Provincial Police pursuant to sub-section (5), the Chief District Officer must work under the direction of the Provincial Ministry. (7) When deputed for duty performance including peace security and crime investigation, a Provincial Police employee must perform functions under the direction of a superior officer. (8) In the context of maintaining peace security, if Nepal Police and Provincial Police are mobilized jointly, Provincial Police must work under the direct control of Nepal Police. (9) In cases where orders or directives are given pursuant to sub-section (4) and Provincial Police is mobilized pursuant to sub-section (5), the supervision of Provincial Police shall also be done by Nepal Police and the Chief District Officer of the concerned district. 13.

Provincial Police of Other Province May Be Mobilized: (1) If, due to serious disturbance in a province or more than one province, possibility of disturbance, or occurrence of a disaster situation, assistance of Provincial Police of another province is also required, the concerned provincial government may make a request to the Government of Nepal for that purpose. (2) Upon receipt of a request pursuant to sub-section (1), or if it deems necessary to mobilize police of another province to prevent disturbance in a province or to assist in a disaster situation, the Government of Nepal may issue directives to the concerned provincial government. (3) Upon receipt of directives pursuant to sub-section (2), the concerned provincial government must depute the required number of Provincial Police of that province to another province. (4) When Provincial Police is deputed to another province pursuant to this section, Nepal Police must make necessary coordination while mobilizing such police employees. Chapter 5 Coordination 14. Police Coordination Committee: (1) For maintaining coordination between Nepal Police and Provincial Police, there shall be a Police Coordination Committee as follows:- (a) Minister of Home Affairs, Government of Nepal - Chairperson (b) Ministers dealing with internal affairs of all provinces - Members (c) Secretary, Ministry - Member (d) Inspector General of Police, Nepal Police - Member (e) Joint Secretary (dealing with peace security), Ministry - Member-Secretary (2) The meeting of the committee pursuant to sub-section (1) shall be held on the date, time and place specified by the chairperson of the committee. (3) In the meeting of the committee pursuant to sub-section (1), the Secretary of the Provincial Ministry, Provincial Police Chief and other office bearers may be invited as necessary. (4) The procedure relating to the meeting and decisions of the committee pursuant to sub-section (1) shall be as determined by the committee itself. (5) The functions, duties and powers of the committee pursuant to sub-section (1) shall be as follows:- (a) To recommend to the Government of Nepal regarding the role to be played by Nepal Police to maintain peace, security and order throughout the country and by Provincial Police to maintain peace and security in the province, and regarding necessary strategies in that regard, (b) To coordinate for the implementation of the national security policy, (c) To identify and review policy problems seen in the operation, supervision and coordination of Nepal Police and Provincial Police and recommend to the Government of Nepal regarding measures for resolution, (d) To resolve disputes relating to the working area between inter-provincial police, (e) To perform other functions as prescribed. 15.

Coordination Unit: (1) There shall be a coordination unit in the Police Headquarters and in the Provincial Police Office of each province. (2) The coordination unit pursuant to sub-section (1) shall function as a contact point for the purpose of exchanging information and assistance between Nepal Police and Provincial Police, and between one Provincial Police and another Provincial Police. Chapter 6 Miscellaneous 16. Role of Police in the Context of Crime Control and Investigation: (1) Upon receiving information that an offense has been committed, is being committed or is about to be committed, Nepal Police or Provincial Police must immediately perform the following functions:- (a) To immediately be present at such place and arrange necessary measures to prevent the offense, (b) If the offense has been committed, to collect facts and evidence as seen and known, and if the offense is to be investigated by another body or officer, to immediately inform the body or officer responsible for crime investigation, (c) To prevent the destruction of

clues and evidence and to arrange necessary security of the crime scene, (d) To provide necessary assistance to the investigating body or officer in the context of investigation of an offense to be investigated by another body or officer, (e) To investigate an offense that it is required to investigate pursuant to this Act or the prevailing law and submit the investigation report to the government attorney, (f) To perform other necessary functions for preventing an offense and for the investigation of an offense already committed and the protection of the victim. (2) While investigating an offense, Nepal Police or Provincial Police must do so pursuant to the National Criminal Procedure Code, 2074 and other prevailing laws. (3) In relation to an offense to be investigated by another body or officer pursuant to sub-section (1), the clues and evidence collected by Nepal Police or Provincial Police must be handed over to the body or officer concerned with the investigation. (4) In the context of crime control and investigation, Provincial Police must work in coordination with Nepal Police as necessary. 17. Duty to Assist in the Work of Chief District Officer: It shall be the duty of a police employee to assist in the work to be performed by the Chief District Officer pursuant to the prevailing law. 18.

Police Employees of Nepal Police May Be Deputed to Provincial Police: (1) In case of a shortage of Provincial Police employees in the approved organizational structure and posts of Provincial Police, the concerned Provincial Ministry may request the Ministry to depute police employees of Nepal Police. (2) Upon receipt of a request pursuant to sub-section (1), the Ministry may depute the required number of police employees of Nepal Police to Provincial Police for a specified period. (3) A police employee of Nepal Police deputed to Provincial Police pursuant to sub-section (2) shall be eligible for promotion in vacant posts in Nepal Police. (4) A police employee deputed to Provincial Police pursuant to sub-section (2) may be transferred or deputed on secondment to another Provincial Police organization or to Nepal Police in coordination with the concerned Provincial Ministry. 19. Power to Arrest: (1) Nepal Police must arrest, pursuant to law, a person involved or suspected in any offense to be investigated by Nepal Police pursuant to this Act and the prevailing law. (2) Provincial Police must arrest, pursuant to law, a person involved or suspected in any offense to be investigated by Provincial Police pursuant to this Act and the prevailing law. (3) Notwithstanding anything contained in sub-sections (1) and (2), Nepal Police may arrest, pursuant to law, a person involved or suspected in an offense to be investigated by Provincial Police or another body or officer, and Provincial Police may arrest, pursuant to law, a person involved or suspected in an offense to be investigated by Nepal Police or another body or officer. (4) A person arrested pursuant to sub-section (3) must be handed over as soon as possible to the body or officer investigating such offense. 20. Nepal Police to Perform Work of Provincial Police: Notwithstanding anything contained elsewhere in this Act, until Provincial Police is formed in any province, Nepal Police shall perform all the work to be done by the Provincial Police of that province. 21.

Consultation with Provincial Public Service Commission Required: (1) While making a law relating to service conditions of Provincial Police subject to this Act, the province must take the advice of the Provincial Public Service Commission. (2) While making a law pursuant to sub-section (1), the following provisions must also be made:- (a) Provision for appointment on the recommendation of the Provincial Public Service Commission to posts in Provincial Police that require appointment through open competition, (b) Provision for representation of the Provincial Public Service Commission also in the committee recommended for promotion to posts in Provincial Police, (c) Provision for police employees appointed in Provincial Police to receive contributory retirement benefits. (3) Notwithstanding anything contained in sub-sections (1) and (2), until the Provincial Public Service Commission is formed, the work of that Commission shall be done by the Public Service Commission. 22. To Make Standards: (1) The Government of Nepal shall make standards regarding remuneration and facilities to be received by Provincial Police, and subject to such standards, the

provincial government shall determine the remuneration and facilities to be received by Provincial Police. (2) Nepal Police shall make and implement standards on the following matters:- (a) Weapons, ammunition and means of communication to be used by Nepal Police and Provincial Police and their use, (b) Training to be provided to Nepal Police and Provincial Police, (c) Private sector security providers and security services provided by such security providers. 23. Power to Delegate: (1) The Government of Nepal may, by publishing a notice in the Nepal Gazette, delegate some of its powers under this Act to be exercised by the police employee or officer specified in that notice as necessary. (2) The power conferred on any police employee by this Act may be delegated by such police employee to a subordinate police employee to work under his or her supervision. 24. Power to Make Rules: The Government of Nepal may make necessary rules for the implementation of this Act. 25. Power to Issue Directives or Procedures: The Government of Nepal may issue necessary directives or procedures for the implementation of this Act or the rules issued under this Act, and such directives or procedures shall come into force after publication in the Nepal Gazette.